

24STCV02736 24STCV02736

County: los-angeles

Division: Civil Law and Motion

Department: 1

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Before the Court is a

motion by Arin James APC to be relieved as counsel for plaintiff Jason Harris.

Counsel gives the following reasons for the motion:

There is a good cause to grant this motion under CRPC Rule 1.16(b) as Defendants' financial information indicates insufficient resources to support the litigation and defendants' default and refusal to retain counsel have impeded case progress and materially affected the representation. Withdrawal will not unduly prejudice the client or delay the proceedings. The case remains at an early stage, with no discovery, trial date, or pending class certification motion. The client will have sufficient time to obtain new counsel or proceed in pro per on his individual claims. The Court may set an OSC for plaintiff to retain new counsel after this motion is granted and if Plaintiff fails to do so by then, the court may dismiss the class allegations without prejudice and permit Plaintiff to proceed in pro per as to his individual claims. Based on the foregoing, I believe in good faith that there is good cause to grant this motion.

(Declaration in Support of Attorney's Motion to be Relieved as Counsel - Civil, § 2.)

Counsel has identified no legally sufficient grounds for permissive withdrawal. The fact that a defendant may not have funds sufficient to pay a judgment may be a reason for a client to opt not to proceed with litigation, but it is not grounds for the attorney to refuse to litigate the client's interests. A judgment against an insolvent defendant may have some value to a client, even if it is worth less than its face value. Whether to litigate in that situation is a decision for the client to make. Counsel does not assert that plaintiff

has refused to perform any requirement incumbent on him in the representation, such as failing to pay invoices or failing to cooperate in litigating the claim. Although the Court will not inquire into privileged communications, it must be observed that a client's refusal to permit a class case to be dismissed in its entirety and insisting that the attorney litigate the client's individual claims to judgment is not a failure to cooperate, particularly where there has been no default in payment by the client or the counsel's compensation is by contingent fee.

Unless the parties agreed, before the representation began, that the representation would be in some way limited, a representation in a case like this necessarily involves litigating the plaintiff's individual claims to their conclusion. The defendant being insolvent and going into default is not Plaintiff's fault, and has nothing to do with counsel's professional obligations to Plaintiff. Indeed, it smacks of client abandonment. Counsel bore the risk that defendant would become insolvent or go into default when they took on Plaintiff's case, and cannot abandon him now. The motion is DENIED.